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File No.: EXP202302643

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. and B.B.B. (*hereinafter, the claimant(s)) filed a complaint with the Spanish Agency for Data Protection on February 13, 2023. The complaint is directed against C.C.C. with NIF ***NIF.1 (*hereinafter, the respondent). The reasons for the complaint are as follows:

“(…) the respondent is responsible for a video surveillance system in their residence, with cameras facing the public road and neighboring houses, without prior administrative authorization for this (…).”
They provide images showing the location of the cameras (Annex I), which confirm the presence of various cameras on the façade of the property, without an informative sign in a visible area.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on March 1, 2023, March 27, 2023, and April 13, 2023, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was subject to "return" by the Official Postal and Telegraph Service, although a .

THIRD: On May 13, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On July 10, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the formulation of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

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Article 64.2.f) of the LPACAP -provision of which the respondent was informed in the initiation agreement- establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed.

Therefore, considering that the respondent has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

SIXTH: Upon consulting the database of this Agency, the referred Initiation Agreement associated with PS/00252/2023 published in the BOE on August 16, 2023, is recorded. In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,

PROVEN FACTS

First. The facts arise from the complaint dated 02/13/23, through which the following is conveyed: "(...) the respondent is responsible for a video surveillance system in their residence, with cameras facing the public road and neighboring houses, without prior administrative authorization for this (...)"—folio No. 1—.

They provide images showing the location of the cameras (Annex I), which confirm the presence of various cameras on the façade of the property, without an informative sign in a visible area.

Second. C.C.C., with NIF ***NIF.1, is accredited as the main responsible party.

Third. The installation of a video surveillance camera system is accredited, which, due to its orientation, affects the area of public transit, given the clearly poor orientation of the cameras from the installation site.

Fourth. It is not recorded that the respondent has installed informative signs indicating that it is a video-surveilled area, informing of the data controller or the purpose of the system.

LEGAL GROUNDS

I

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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, on the transposition of European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registry actions; and by which Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials is amended, the procedural deadline established in Article 64.2 "in fine" shall be applied to this procedure.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived.

II

In this case, the claim of the claimant(s) is examined, through which "the presence of cameras without notification in the dwelling located at C/ ***ADDRESS.1 (...)" is reported, which they believe affects their privacy by controlling access (entries/exits) to the same.

...they are recording, areas across the street, all the people walking on the two sidewalks, the cars parking all over the street, and one of them is focused on the entire street with its attached houses...

The facts are specified primarily in the excessive control of adjacent areas that affect the personal sphere of third parties, as well as the absence of an informative sign indicating that it is a video-monitored area, without prejudice to what results from the instruction of the procedure.

Article 5.1 c) of the GDPR provides as follows: Personal data shall be: "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

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It should be noted that individuals are responsible for ensuring that the systems installed comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the required informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be directed towards private space, avoiding intimidating neighboring residents with such devices, as well as controlling transit areas without justified cause.

Moreover, such devices cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps, complying with the requirements of Organic Law 4/1997, of August 4, which regulates the use of video cameras by the Security Forces and Corps in public places. It is worth remembering that even in the case of a "simulated" camera, it must be preferably directed towards private space, as it is considered that such devices can affect the privacy of third parties, who feel intimidated by it under the belief of being subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or the transit of third parties, outside the cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the holder in such a way that they do not affect the areas of third parties who may feel intimidated by them, affecting their free transit area or private space.

III

In accordance with the ample evidence available in this sanctioning procedure, it is considered that the party being claimed has a video surveillance system that affects the rights of third parties without justified cause, as it is disproportionately directed towards public transit areas.

The known facts are therefore constitutive of an infringement, attributable to the party being claimed, for violation of the content of Article 5.1 c) of the GDPR.

Article 72, paragraph 1, letter a) establishes a statute of limitations of three years for "infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

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IV

From the initial evidence provided, the presence of an information sign indicating that it is a video-monitored area has not been verified, reminding of the necessity of such a sign if the cameras are located outside.

Article 22, section 4 of the LOPDGDD states: "The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an information device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the information device."

The aforementioned facts imply a violation of the content of Article 13 of the GDPR, due to the lack of information sign(s) with an effective address to which one could direct inquiries or indicate, if applicable, the main data processing controller.

Article 13 of the GDPR "Information to be provided when personal data is obtained from the data subject"

1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide all the information indicated below at the time the data is obtained: a) the identity and contact details of the controller and, where applicable, of the controller's representative; b) the contact

details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 72, section 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements states that they "shall prescribe after three years" and particularly the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

V

Article 83.5 of the GDPR states the following: "Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...).

b) The rights of data subjects under Articles 12 to 22 (...).

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In motivating the sanction, the lack of initial allegations in response to the request from this agency is taken into account, although the evidence provided confirms the presence of devices with poor orientation, as well as the absence of information sign(s), which denotes negligence in the described conduct. Therefore, a sanction of €600 (300€+300€) is agreed upon for the infringement of Articles 5 and 13 of the GDPR, with the sanction placed at the lower end of the scale for such behaviors.

VI

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

It is noted that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on C.C.C., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €600 (300€+300€).

SECOND: TO NOTIFY this resolution to C.C.C..

THIRD: TO ORDER C.C.C., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 15 working days, prove compliance with the following measures:

- Remove/reorient the cameras so that their field of vision is strictly limited to the property to be protected, providing a photograph with date and time of such action.
- Place a certified sign in a visible area indicating that it is a video-monitored zone, the data processing controller, and an effective way to exercise rights under the current GDPR.

FOURTH: To warn the sanctioned party that they must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within

the payment deadline.

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voluntary payment established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXX-XXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered concluded.

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